



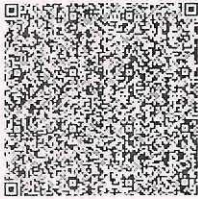
सत्यमेव जयते

INDIA NON JUDICIAL

Government of Tamil Nadu

e-Stamp

Certificate No. : IN-TN75229772748016X
Certificate Issued Date : 17-Apr-2025 04:50 PM
Account Reference : NEWIMPACC (SV)/ tn8108604/ ADAYAR/ TN-CS
Unique Doc. Reference : SUBIN-TNTN810860419905055677519X
Purchased by : ORBIS TRUSTEESHIP SERVICES PVT LTD
Description of Document : Article 5 Agreement
Property Description : CONTRIBUTION AGREEMENT
Consideration Price (Rs.) : 1,00,00,000
(One Crore only)
First Party : ORBIS TRUSTEESHIP SERVICES PVT LTD
Second Party : WATERMOUNT VENTURES LLP
Stamp Duty Paid By : ORBIS TRUSTEESHIP SERVICES PVT LTD
Stamp Duty Amount(Rs.) : 200
(Two Hundred only)



Please write or type below this line

THIS STAMP PAPER FORMS AN INTEGRAL PART OF THE CONTRIBUTION AGREEMENT DATED 17TH APRIL 2025, EXECUTED AMONG ORBIS TRUSTEESHIP SERVICES PRIVATE LIMITED, THE TRUSTEE ; WATERMOUNT VENTURES LLP, INVESTMENT MANAGER OF GHL INDIA VENTURES TRUST; AND MR. NAMBIKAR K THE CONTRIBUTOR.

For WATERMOUNT VENTURES LLP

For Orbis Trusteeship Services Private Limited

Authorised Signatory

Authorised Signatory(s)

HIF 0027221368

Statutory Alert

1. The authenticity of this Stamp Certificate should be verified at www.e-stamp.com or using e-Stamp Mobile App of Stock Holding Corporation of India.
2. Any discrepancy in the details on this Certificate and as available on the website / Mobile App renders it invalid.
3. The duty of checking the legitimacy is on the users of the certificate.

CONTRIBUTION AGREEMENT

BETWEEN

ORBIS TRUSTEESHIP SERVICES PRIVATE LIMITED

AS TRUSTEE

AND

WATERMOUNT VENTURES LLP

AS INVESTMENT MANAGER

OF

GHL INDIA VENTURES TRUST

AND

CONTRIBUTOR

THIS CONTRIBUTION AGREEMENT IS DATED 17-04-2025

This Contribution Agreement (this "**Agreement**") is executed at on 17 Apr 2025 at Chennai (hereinafter referred to as the "**Effective Date**"):

BY AND BETWEEN:

1. **Orbis Trusteeship Services Private Limited**, a company incorporated under the provisions of the Companies Act, 2013 and having its registered office at 4A, Ocus Technopolis, Sector 54, Golf Club Road, Gurgaon-122002, Haryana, India (hereinafter referred to as the "**Trustee**" which expression shall, unless repugnant to or inconsistent with the context, mean and include its successors and assigns) acting in its capacity as the trustee of the **GHL India Ventures Trust** of the **FIRST PART**;
2. Nambiraj K residing at SMQ 171/6 Kalpha Vihar, Air Force Quarters Kadampadi, Sulur, Kangayampalayam, Sulur, Coimbatore, Kangayampalayam, Tamil Nadu, India, 641401 (hereinafter referred to as the "**Contributor**" which expression shall, unless repugnant to or inconsistent with the context, mean and include its successors and permitted assigns, of the **SECOND PART**; and
3. **Watermount Ventures LLP**, an LLP registered under Limited Liability Partnership Act and having its registered office at Plot No.1, 2nd Street Extn, Ricky Garden, Selaiyur, Rajakilpakkam, Kanchipuram, Tambaram, Tamil Nadu-600073, (hereinafter referred to as the "**Investment Manager**" which expression shall, unless repugnant to or inconsistent with the context, mean and include its successors and permitted assigns, in its capacity as the investment manager of the **GHL India Ventures Trust** and its Schemes of the **THIRD PART**.

In this Agreement, unless the context otherwise requires, the Trustee, Investment Manager and the Contributor shall hereinafter be jointly referred to as the "**Parties**", and individually as the "**Party**"

WHEREAS:

A. Under the Indenture of Trust dated, January 19, 2024 (the "**Indenture**"), the Trustee has been appointed by the Settlor (as defined under the Indenture) to act as a trustee to **GHL India Ventures Trust** (hereinafter referred to as the "**Trust**");

B. The Trust received its registration as a Category II Alternative Investment Fund ("**AIF**") with SEBI under the SEBI (Alternative Investment Fund) Regulations, 2012 ("**AIF Regulations**") and shall invest in and carry out activities of a Category II Alternative Investment Fund in accordance with the Fund Documents and the AIF Regulations.

C. The Indenture, Private Placement Memorandum (hereinafter referred to as "**PPM**") and the Investment Management Agreement shall hereinafter be collectively known as the "**Fund Documents**"

D. Under the Investment Management Agreement, the Trustee has appointed the Investment Manager to advise, manage and administer the **GHL India Ventures Fund** (hereinafter referred to as the "**Fund**") and has delegated its powers and responsibilities to the Investment Manager for said purposes;

E. The Investment Manager has, on behalf of the Fund, set up the first scheme of the Trust, issued the PPM, to the Contributor(s) and the Contributor(s) having read and understood the same have agreed to contribute to the Fund, on such terms and conditions as specified in the Fund Documents;

F. The Investment Manager undertakes to ensure that the Fund shall make Investments in accordance with the provisions of the Fund Documents and Applicable Laws;

F. The Investment Manager undertakes to ensure that the Fund shall make Investments in accordance with the provisions of the Fund Documents and Applicable Laws;

NOW, THEREFORE, the Parties agree as follows:

CONTRIBUTION INSTRUCTIONS

The Contributor(s) under this Agreement have decided to invest in GHL India Ventures Fund being the first scheme of GHL India Ventures Trust vide this Agreement in accordance with the provisions of the Fund Documents.

The duties, obligations and responsibilities of the Trustee are already documented in the Indenture, subject to delegation to the Investment Manager under the Investment Management Agreement.

The duties, obligations and responsibilities of the Investment Manager may accordingly be read, along with the PPM of **GHL India Ventures Fund** being the first scheme of **GHL India Ventures Trust**.

The provisions of the PPM, as amended from time to time, are deemed to be fully incorporated in this Agreement and shall apply *mutatis mutandis* to these provisions and are binding on the Contributor.

This Agreement only discusses rights, duties, obligations and responsibilities of the Contributor in greater detail.

The Agreement, Private Placement Memorandum and the supporting documents should be returned to the Trustee at their address listed in the Indenture.

The contribution monies must be paid by telegraphic transfer to the following account:

Bank Account - I

A/C No. 000905036493

Bank ICICI BANK

IFSC Code ICIC0000009

A/C of GHL India Ventures Fund

Bank Account - II

A/C No. 256112223333

Bank INDUSIND BANK

IFSC Code INDB0000328

A/C of GHL India Ventures Fund

If the relevant Agreement (properly completed) and the supporting documents and/or investment monies is/are not received in time, then the Trustee in consultation with the Investment Manager shall have discretion to reject the application to invest.

The Contribution Agreement must be completed, executed and submitted correctly or it may not be accepted.

CONTRIBUTION AGREEMENT FOR GHL INDIA VENTURES FUND

Definitions and Interpretation

All capitalised words and phrases shall have the same meaning as assigned to them in the Fund Documents, unless defined herein or the context otherwise requires.

The rules of interpretation of expressions, terms, phrases or definitions as enumerated under the Fund Documents shall apply mutatis mutandis to this Agreement.

In the event of a conflict in the interpretation and / or consequence arising from the interpretation of expressions, terms, phrases or definitions amongst the Fund Documents, the following shall be the order of precedence based on which the relevant expression, term, phrase or definition shall be interpreted: first, this Agreement; second, the Indenture; third, the Investment Management Agreement; and fourth, the Private Placement Memorandum.

Indenture and the Investment Management Agreement

Notwithstanding anything contained in this Agreement, the provisions of the Indenture and the Investment Management Agreement are deemed to be fully incorporated in this Agreement and shall apply mutatis mutandis to these provisions and are binding on the Contributor, Investment Manager and Trustee.

In the event of an inconsistency between the provisions of the Indenture and this Agreement, provisions of the Indenture shall prevail.

In case such an inconsistency arises, the Investment Manager shall cause the Trustee to take adequate steps to amend this Agreement to bring about a harmonious construction.

Amount of Capital Commitment

Having read the Indenture executed in relation to the Trust, Investment Management Agreement and PPM of the Fund, the Contributor hereby agrees to invest/contribute in the Fund on the terms and conditions contained in the Fund Documents.

I / We hereby irrevocably invest monies and hence will receive corresponding units in **GHL India Ventures Fund** and be regarded as one of the Beneficiary in **GHL India Ventures Fund**. We will commit upto INR 1,00,00,000 (one crore rupees) in various tranches as may be called upon by the Investment Manager to subscribe to Class 10000 Units immediately on signing of this Agreement. The redemption, distribution and all other terms and conditions documented in the Fund Documents will apply to Contribution vide this Agreement, to the extent applicable.

I/We hereby confirm that we have read all the provisions of the Fund Documents and will abide with all the terms stated in the Fund Documents.

By completing and delivering this Agreement, as the applicant you hereby agree / confirm:

Reliance on the Fund Documents Only

1. that, in executing this Agreement, neither you nor any person on whose behalf you are applying, are relying on any information or representation in relation to the Fund other than the information contained in the Fund Documents and, accordingly, you agree that no person responsible solely or jointly for the Fund Documents or any part thereof or involved in the preparation thereof shall have any liability for any information other than in accordance with the terms contained in the Fund Documents;

2. that you will not duplicate or furnish copies of the Fund Documents, or divulge any of its contents, to any Person other than your investment, legal or tax adviser (who may use the information contained in the Fund Documents solely for purposes related to your Capital Commitment in the Fund);
3. that, having had the opportunity to read the Fund Documents, you shall be deemed to have understood all information and representations concerning the Trust, the Fund, the Trustee and the Investment Manager contained therein, and to have read and accepted the terms and conditions thereof;
4. that, you have had the opportunity to ask questions and receive answers concerning the Fund and the terms and conditions of making this Capital Commitment from authorised representatives of the Fund;
5. that you understand that there are substantial risks involved in an investment in the Fund as more specifically stated under the PPM;
6. that you understand that you have been advised to consult with your legal, financial and tax advisers concerning an investment in the Fund and have done so to the extent you consider necessary;

Capacity and Compliance with Laws

7. that you represent and warrant that you have the legal power, capacity and authority and are permitted by Applicable Laws to execute, deliver and perform this Agreement and that this Contribution Agreement is a valid and binding agreement enforceable against you in accordance with its terms;
8. that you represent and warrant that you have such knowledge and experience in financial and business matters that you are capable of evaluating the merits and risks of investing in the Fund;
9. that you represent and warrant that you have agreed to invest in the Fund based on Fund Documents, to make Investments as detailed and in accordance with the provisions of the Fund Documents along with other Beneficiaries;
10. that you warrant that, if you are an individual, you are not under the age of 18;
11. that you represent and warrant, any amount contributed and to be contributed under this Agreement is and will be through legitimate sources only and does not and will not involve and is not and will not be designated for the purpose of any contravention or evasion of the provisions of the Income Tax Act, 1961, Prevention of Money Laundering Act, 2002, Prevention of Corruption Act, 1988 and/or any other Applicable Laws in force and enacted by a governmental/ regulatory authority from time to time or any rules, regulations, notifications or directions issued thereunder;
12. that you represent and warrant that all consents required to be obtained and all legal requirements necessary to be complied with or observed in order for this Agreement to be lawful and valid under the Applicable Laws of any jurisdiction to which you are subject have been and shall continue to be obtained, complied with and observed;

13. that you represent and warrant that you are and will be able to bear the economic risk of losing your investment in the Trust;
14. that you will comply with the request of the Fund to furnish such information / documentation / declarations as and when deemed necessary by the Investment Manager in accordance with the Applicable Laws including any compliances under the Income-tax (11th Amendment) Rules, 2015 notified by the Central Board of Direct Taxes ("FATCA Implementation Rules");
15. that you will not hold the Trust, Trustee or Investment Manager liable if the Trust and / or the Investment Manager is required by Applicable Laws, including the FATCA Implementation Rules, to provide information regarding the Fund and / or the Contributors or Beneficiaries to any regulatory authority and / or the Fund Investments and / or income therefrom, and the Trust and / or the Investment Manager complies with such request in good faith, whether or not it was in fact enforceable;
16. that you understand that the provisions of the FATCA Implementation Rules are relevant not only at on-boarding stage of Contributors but also throughout the life cycle of investment with the Fund. You therefore should immediately intimate to the Trust / the Investment Manager, any change in their status with respect to any FATCA Implementation Rules related information / documentation / declarations provided by you previously;
17. that if you fail to furnish the relevant information / documentation / declarations in accordance with the Applicable Laws, the Fund reserves the right to redeem the Units held directly or beneficially, in accordance with this Agreement and may also require reporting of your details and / or levy of withholding Tax on payments made to you and / or take any other action/s in accordance with Applicable Laws.;

Acceptance of Applications

18. that you irrevocable agree to invest amounts specified in this Agreement on the terms of and subject to the Fund Documents and these terms and conditions;
19. that all payments by the you shall be made in cash by way of wire transfer or through any other permissible banking channel pursuant to instructions provided by the Investment Manager, prior to the due date of such Contribution. With respect to the subscription of Units, the Contributor agrees to be bound, by all the terms and provisions of this Agreement and Fund Documents.

Supporting Documents

20. that you represent and warrant that all documents and other papers delivered by yourself or someone on your behalf in connection with this Agreement are true, complete and authentic. No document or other paper furnished by yourself or someone on your behalf in connection with this Agreement contains an untrue statement of material fact required to be stated therein;

Money Laundering

21. to the passing on of any information about you to any relevant regulatory authorities by the Fund, the Investment Manager, the Trustee or their respective delegates;
22. that due to anti-money laundering requirements operating within India, the Fund, the Investment Manager and the Trustee may require further identification of the investor and source of funds before investment can be processed and you hold the Beneficial Interest in the Fund. The Investment Manager and the Trustee shall remain harmless and indemnified against any loss arising from the failure to process your investment if such information as has been required has not been provided;
23. that any return of original investment or income thereof paid to you will be paid to the same account from which your investment in the Fund was originally remitted, unless the Trustee, in consultation with the Investment Manager agrees otherwise and agrees that any definitive document of title and any monies returnable to you may be retained pending clearance of your remittance and the completion of any verification of identity and/or source of funds required and that retained monies will not bear interest;

Continuing Obligations

24. that you will repeat these undertakings, representations and warranties to the Fund and/or the Trustee/ Investment Manager on such future occasions as the Fund and/or the Trustee/ Investment Manager may request, and will provide on request such certificates, documents or other evidence as the Fund and/or the Trustee/ Investment Manager may reasonably require to substantiate such undertakings, representations and warranties;
25. that if any of the representations, warranties, or undertakings given by you in this Agreement are found to be untrue, the Fund in its sole discretion may require a retroactive redemption of all or part of your investment;
26. that each Contributor will be required to return distributions (including after the winding up of the Fund) made to such Contributor, for the purpose of meeting such Contributor's pro rata share of any liability on the Fund (including tax liabilities, or indemnification or guarantee obligations);
27. that the Fund may redeem the whole or a specified percentage of your interest if the Trustee, in consultation with the Investment Manager, considers that you continuing to hold interest in the Fund would be detrimental to the pecuniary, taxation, material, legal or regulatory interests of the Fund or its Beneficiaries as a whole, or if such holding is in contravention of any of the prohibitions contained in the Fund Documents or Applicable Laws;
28. understand that the Fund shall not permit any Contributor to transfer the Units to any other person except if within family/group entities that too only on approval by the Investment Manager in exceptional situations;

29. that the Fund shall not accept investment for an amount less than INR 1,00,00,000 (net of any payment of placement fee or similar commissions) or such other amount as may be prescribed as the minimum investment amount under Applicable Laws;

30. Assignment / Transfer of Units

30.1. A Contributor desirous of transferring any Unit(s) shall furnish to the Investment Manager such information as may be required by the Investment Manager in order to make a decision regarding approving a proposed transferee. This shall include information about whether said proposed transferee is an Affiliate of the Contributor or not and any documentary evidence for the same, as well as the necessary KYC and other information that may be stipulated in the Agreement. The transferee shall also submit FATCA / CRS Declaration or any other document, as may be required by the Investment Manager, at the time of submitting a request for transfer of the Unit(s).

30.2. Further, every new contributor taken on record, on account of any transfer, enforcement of pledge or assignment, shall execute a deed of adherence acknowledging and agreeing to be bound by the terms and conditions of this Agreement and other Fund Documents, in a format acceptable to the Investment Manager. All costs and duties with respect to such deed of adherence shall be borne by the new contributor. Any stamp duty, taxes or other levies payable on any such permitted transfers shall be borne by the Contributor or the transferee, but not by the Fund or the Fund.

31. Winding up / Removal / Revocation of Contribution

31.1. Winding up of the Fund: The Trustee and the Investment Manager may, subject to the restrictions contained in the AIF Regulations, at any time before the expiry of the term of the Fund, wind up the Fund in terms of the Indenture.

31.2. Removal of Trustee: The Trustee may be removed in accordance with the Indenture.

31.3. Removal of the Investment Manager: The Investment Manager may be removed in accordance with the Private Placement Memorandum and/or Management Agreement.

Specific terms

32. Nil

Indemnity

33. The Contributor hereby expressly agrees that, subject to the provisions of the Indenture, the Fund shall indemnify and hold harmless the Trustee, the Sponsor, the Investment Manager, and their respective Affiliates, officers, members, shareholders, directors, partners, employees, agents and representatives, members of any investment committee on behalf of the Fund from and against any and all tax and other liabilities, claims, costs, losses, damages and expenses (including reasonable attorneys' fees and costs) arising out of or in connection with the Fund including on account of any payment of distributions to the Contributors through electronic mode, unless resulting from gross negligence and/or wilful default which is proven by a final, non-appealable judgment of a court of competent jurisdiction.

34. The Contributor hereby agrees to indemnify and hold harmless the Fund, the Trustee, the Investment Manager, and their directors, partners, employees and agents from and against liabilities, claims, costs, losses, damages and expenses (including reasonable attorneys' fees and costs) due to or arising out of any inaccuracy or breach of any representation and/or warranty of the Contributor, as set out in this Agreement. The Contributor agrees that this indemnification obligation shall continue beyond the Term and survive the termination of this Agreement.

35. The Contributor also agrees that any indemnity expressly provided under Clause 34 and Clause 35 above is in addition and without prejudice to any indemnity or right of contribution allowed by law. Provided nevertheless that any provision of this Agreement shall be void insofar as it would have the effect of indemnifying by causing the indemnification of the Trustee, the Investment Manager, and their directors, partners, employees and agents against any liability for breach of duty or any liability which by virtue of any rule of law would otherwise attach to it in respect of any gross negligence, wilful default, fraud which is proven in the court of competent jurisdiction having regard to the provisions of this Agreement.

36. The Trustee, the Investment Manager, and their directors, partners and employees shall not be liable to the Fund or to any Contributor for any act or omission suffered or taken by them or by any agent acting on their behalf provided that such agent was selected, engaged, and retained by the Trustee, the Investment Manager, and their directors, partners and employees in good faith, or that was suffered or taken in the good faith belief that it was in the best interests of the Fund; except where the Trustee, the Investment Manager, and their directors, partners and employees are adjudicated by a court of competent jurisdiction to have committed actions (or omissions) constituting gross negligence, wilful misconduct or fraud. For avoidance of doubt, the appointment and delegation of any powers to the Investment Manager in relation to the Fund shall be deemed to have been made in good faith.

37. The Contributor/s hereby agree to indemnify and hold harmless the Fund, the Investment Manager, the Trustee, the Custodian, their Affiliates and each other person, if any, who controls or is controlled by any thereof, against any and all loss, liability, claim, damage and expense whatsoever (including, but not limited to, any and all expenses and costs (including lawyers' fees) reasonably incurred in relation to the Trust and the Fund, including in investigating, preparing or defending against any litigation commenced or threatened or any claim whatsoever) arising out of or based on, inter alia:

- (i) any false representation or warranty or breach or failure by the Contributor to comply with any covenant or agreement made herein or in any other document furnished to any of the foregoing in connection with the Fund;

(ii) any actions for securities or money laundering laws violations instituted against the Contributor which is resolved by judgment against it;

(iii) any failure to provide source of funds information;

38. agree that you will be obligated to return distributions made to you in order to satisfy your pro-rata share of any non-tax obligations or non-tax liabilities of the Fund (including any liability that arises from the sale of any investments, any indemnification obligations that may arise), including with respect to pending or contingent claims; however, that such obligation to return distributions shall continue beyond the end of the term of the Fund. Further, the Trustee may, in consultation with of the Investment Manager, require you to return distributions made to you in order to satisfy your pro-rata share of any tax obligations or tax liabilities even if such tax obligation or tax liability arises during statutory period as per Income Tax Act after the expiry of the Term. This obligation shall be to the extent of your pro rata share of the claim or liability.

39. if at the end of the period referred to above, there is pending or threatened any legal action, suit or proceeding or any claim has been made, in either case, against the Trustee or Investment Manager or such person so identified or any liability (actual or contingent) exists which may entitle such persons to be indemnified by the Fund (any of the foregoing a "Claim"), the Trustee or Investment Manager or Liquidator shall so notify you at such time (which notice shall include a brief description of each Claim) and your obligation to return any distributions for the purposes specified shall survive with respect to each Claim set forth in such notice (or any related action, suit, proceeding, claim or liability based upon the same or a similar Claim) until the date that such Claim is ultimately resolved and satisfied.

40. agree to execute and abide by the tax related Undertaking to be executed by you at time of executing Contribution Agreement, in the format listed in Annexure.

41. The Contributor/s hereby agree that any right of indemnity available to a Party and its Affiliates under this Agreement is in addition and without prejudice to any indemnity or right of contribution allowed to them by Applicable Laws.

42. the Contributor further agrees and confirms to the following:

42.1. Contributor has obtained all requisite approvals, consents and registrations, as may be required under Applicable Laws and regulations, for making Capital Contributions to the Fund;

42.2. Contributor has received, carefully read and understood the Fund Documents including, among other things, the organization and investment objectives and policies of, and the risks and expenses of an investment in, the Fund;

42.3. The Contributor has reviewed, in particular, the section titled "Risk Factors and Conflicts of Interest" in the Private Placement Memorandum and understands the risks of investing in the Fund;

42.4. The Contributor acknowledges that in making a decision to subscribe the Units in the Trust, the Contributor has relied only on the information set forth in the Fund Documents. The Contributor understands that no Person has been authorized to

make any representations concerning the Trust which are inconsistent with those contained in the Fund Documents;

42.5. The Contributor represents that, in subscription to the Units of the Trust, it is not relying upon any written or oral statements of any employee, officer or other personnel of the Trust, the Investment Manager, the Trustee, any Placement Agent, any affiliate of the foregoing or any other Person other than the statements contained in the Fund Documents.

42.6. The Contributor does not and shall not rely on the Investment Manager, the Trustee, any affiliate of the foregoing or any other Person or entity with respect to the legal, tax and other economic considerations involved in this investment, other than the contributor's own advisors. The Contributor has not considered the contents of the Private Placement Memorandum to be legal or tax advice;

42.7. The Contributor's investment in the Units of the Trust is consistent with the investment purposes, objectives and cash flow requirements of the contributor and shall not adversely affect the Contributor's overall need for diversification and liquidity;

42.8. The Contributor shall, at all times until termination of this Agreement, adhere to the laws of India, including but not limiting to any provisions of, or regulations framed or notifications issued under, the Applicable Laws. Further, the Contributor shall ensure that its investments into the Trust is in accordance with the laws of India and the Contributor shall adhere to the terms and conditions as may be prescribed by any statutory or governmental authority, as may be required for making investment into the Trust.

43. Limitation of Liability of Investment Manager

43.1. The Trustee, Investment Manager, its Affiliates and its respective officers, directors, members, partners, shareholders, or employees will not be liable to the Contributors, or any of their Affiliates, for any act or omission performed or omitted by any of them, unless such act or omission results from the gross negligence or wilful misconduct of the Trustee and the Investment Manager, which is finally settled by a court of competent jurisdiction.

43.2. The Investment Manager shall incur no liability in respect of any action taken or omitted to be taken, or things suffered by it in reliance upon any notice, resolution, direction, consent, certificate, affidavit, statement, certificate of stock, plan of reorganization or (without being limited in any way by the foregoing) other paper or document believed to be genuine and to have been passed, sealed or signed by appropriate authorities or entities except in case of gross negligence, wilful misconduct or fraud on part of the Investment Manager, as may be finally determined by a court of competent jurisdiction.

43.3. The Investment Manager shall incur no liability to the Contributors or any other person for doing or (as the case may be) failing to do any act or thing which by reason of:

- (a) any error of judgment or mistake of law or if the Trust fails to achieve its investment objectives or for any loss arising out of any advice or for any act

or omission in the performance of the investment management services rendered to the Trust or otherwise, except where such liability has arisen as a result of gross negligence, wilful misconduct and fraud on the part of the Investment Manager, as may be finally determined by a court of competent jurisdiction;

(b) any request, announcement or similar action (whether of binding legal effect or not) which may be taken or made by any Person or body acting with or purporting to exercise the authority of any government (legally or otherwise) under which it is directed or requested to do or perform or to forbear from doing or performing such act or thing and by reason of which it becomes impossible or impracticable to carry out any of the provisions of these presents;

43.4. Subject to provisions of the Contribution Agreement, the Investment Manager shall not be accountable or be held liable by any Contributor or any third party in respect of any investments made or investment decisions taken in respect of the Trust in the manner set out in the Contribution Agreement and the Fund Documents other than for fraud, gross negligence or wilful misconduct, as may be finally determined by a court of competent jurisdiction.

43.5. The Investment Manager shall not be responsible to the Contributor for any authenticity of any signature or of any seal affixed to any endorsement on any certificate or to any transfer or form of application or any other document affecting the title to or transmission of Units or of any investments of the Fund or be in any way liable for any forged or unauthorised signature or seal provided that reasonable care is exercised by the Investment Manager in this regard. The Investment Manager shall be entitled to but not bound to require that the signature of any Contributor to any document, required to be signed by him, under or in connection with these presents, shall be verified to its or their reasonable satisfaction.

43.6. Nothing herein contained shall be construed so as to prevent the Investment Manager or the Trustee from separately promoting, organising, managing or advising any additional fund(s) or other investment vehicle(s) separate and distinct from the Fund with objectives of investing into identified sector(s) including sectors that may form a part of the sectors into which the Fund is entitled to or proposes to invest in and retain for their own use and benefit all remuneration, profits and advantages which they may derive therefrom.

43.7. If the Investment Manager is requested by any regulatory authority to provide it with any information regarding the Fund or Contribution to Trust and/or the Contributors and the investments and income of the Fund and provisions of these presents, and complies with such request in good faith, whether or not it was in fact enforceable, the Investment Manager shall not incur any liability to the Contributors or any of them or to any other party as a result of such compliance or in connection with such compliance. However, it shall duly inform the Contributors of the same.

43.8. The Investment Manager shall not incur any liability by reason of any loss, which a Contributor may suffer by reason of any depletion in the value of the Trust, which may result by reason of fluctuation in the rate of exchange or by fluctuation in the market price of any of the investments of the Fund.

43.9. For the avoidance of doubt, it is hereby agreed and declared that references to the Investment Manager in this Clause shall be deemed to include Trustee.

44. Return of Contribution

44.1. The Contributor shall only be entitled to get a return of its Capital Contribution made:

- (a) upon redemption of units or distributions by the Fund; and/or
- (b) dissolution of the Fund.

44.2. Such return shall be distributed to the Contributors in accordance with the provisions of the Memorandum.

The Trustee, the Investment Manager or their respective directors or employees or agents or Affiliates shall not have any personal liability to the Contributor for the return of its Contribution and shall be under no obligation to distribute or repay any amount to the Contributor, unless at the time of each distribution or repayment, all liabilities of the Fund to persons other than the Contributor shall have been paid or in good faith determination of the Trustee, there shall remain in the Fund, assets sufficient to pay such liabilities.

Confidentiality

45. The Contributor/s agree that all information provided in the Fund Documents or any other communications and information provided from time to time in relation to the Fund will be treated confidentially by you. You will also be restricted and should not take positions in the securities the Fund has invested in based on information available from the Fund from time to time.

Choice of Law

46. This Agreement shall be governed by and construed in accordance with the laws of Chennai, India and you submit to the jurisdiction of the Chennai Courts. Arbitration process listed in the Indenture shall also apply for any disputes arising on this Agreement.

Waiver

47. No failure to exercise and no delay in exercising, on the part of a Party, any right, power or privilege hereunder shall operate as a waiver thereof nor shall any single or partial exercise of any right, power or privilege preclude any other or further exercise thereof or the exercise of any other right, power or privilege. The rights and remedies provided in this Agreement are cumulative and not exclusive of any rights or remedies otherwise provided by law.

Trustee, ORBIS TRUSTEESHIP SERVICES PRIVATE LIMITED



Deepthi Aggarwal

Signed and Delivered by the within named

Investment Manager, Watermount Ventures LLP





N. Padamanabhan

N Padamanabhan

Designated Partner

SIGNATURE PAGE FOR INDIVIDUALS ONLY



The undersigned has executed this Agreement as of the date written below and confirms that the information set out herein is true and correct

Subscription Amount:

(Rupees : one crore rupees)

Signature Of Investor



Nambi raj

Nambi raj

Date:

17-04-2025

Investors' Bank Details

(from which the above payment has been made by way of inter-bank transfer, and to which proceeds from the Fund to the investor will be paid by way of inter-bank transfer)

Bank: : State Bank of India

IFSC Code: : SBIN0004882

A/C no.: : 10123979069

A/C name: : Mr. NAMBIRAJ K

SIGNATURE PAGE FOR INSTITUTIONAL INVESTORS (CORPORATIONS, PARTNERSHIPS, TRUSTS, ESTATES OR OTHER ENTITIES INCLUDING FINANCIAL INSTITUTIONS) ONLY

The undersigned has executed this Agreement as of the date and year first herein written and confirms that the information set out herein is true and correct.

Subscription Amount:

(Rupees : one crore rupees)

Nambi raj

Signed :

Name :

Title :

Address :

Date: :

Investors' Bank Details

(from which the above payment has been made by way of inter-bank transfer, and to which proceeds payable from the Fund to the investor will be paid by way of inter-bank transfer)

Bank: : State Bank of India

IFSC Code: : SBIN0004882

A/C no.: : 10123979069

A/C name: : Mr. NAMBIRAJ K

ANNEXURE

TAX DECLARATION

I / We acknowledge and agree that the Trustee / Investment Manager will compute and discharge the tax liability on my / our share in the income of the Fund on my / our behalf, in its capacity as a representative assessee, at the maximum marginal tax rate (including applicable surcharge and cess, if any) applicable to each stream of income of the Fund.

However, the Trustee / Investment Manager shall discharge its above mentioned obligation, without giving effect to any specific benefits or claims including but not limited to provisions relating to differing income tax slab rates applicable to me / us or setoff of brought forward losses or specific exemptions (specific to me / us) under the provisions of the Income Tax Act, that me/us may be governed by or entitled to claim under the provisions of the Income Tax Act.

Wherever applicable, the Trustee / Investment Manager will discharge, from the Contribution Fund, the tax obligations in a periodic manner as may be required under the provisions of the Income Tax Act in the form of advance tax payments, self-assessment tax payments etc. Where applicable the Trustee/ Investment Manager shall also discharge, from the Contribution Fund, interest, penalties if any, that may be levied under the provisions of the Income Tax Act. If the Trustee / Investment Manager is called upon to make any further payment of taxes on the income of the Fund, it shall be entitled to recover the same from me / us.

Any taxes (whether by way of withholding or otherwise) paid on my / our behalf by the Trustee / Investment Manager shall be deemed to be a distribution to me / us of my / our Contribution and if the Trustee / Investment Manager is called upon to make any further payment of taxes on the income of the Trust, it shall pay the same as my / our representative assessee and shall be entitled to recovery of the same from me / us.

The Trustee and / or Investment Manager may at any point of time retain some amount of money before any distribution is made to me / us and may also transfer such retained money to a reserve for meeting any future contingent tax liability which might arise during the Term of the Fund or after the Fund's Term gets over.

I / we will be liable to the Trustee, Investment Manager or the Fund for tax liabilities that were incurred including interest, penalty, attorney fees relating to my / our contribution made to the Fund and shall apply for so long as I / we are invested in the Fund and till conclusion of the pending litigations of the Fund.



First Applicant

Second Applicant

Third Applicant